

JACOB *v.* NEW YORK CITY.CERTIORARI TO THE CIRCUIT COURT OF APPEALS FOR THE
SECOND CIRCUIT.

No. 589. Argued March 6, 1942.—Decided March 30, 1942.

1. Contributory negligence and assumption of risk are not available as defenses to suits under the Jones Act; the admiralty doctrine of comparative negligence applies. P. 755.
 2. Upon the evidence, the plaintiff in this action under the Jones Act for personal injuries suffered in a fall caused by his use of a defective wrench, which he had asked his superior to replace, was entitled to have the case submitted to the jury on the issue whether his injuries resulted from defect or insufficiency, due to the employer's negligence, in its appliances; and the dismissal of his complaint was a denial of his statutory right of jury trial. P. 756.
 3. Under the Jones Act, it is a duty of the employer to furnish reasonably safe and suitable simple tools when he is aware that those in use are defective; the employee need not furnish his own simple tools when he finds those of the employer defective. P. 758.
 4. The trial court's exclusion of opinion evidence as to the best type of tool for the work, was not error warranting reversal. P. 758.
- 119 F. 2d 800, reversed.

CERTIORARI, 314 U. S. 595, to review the affirmance of a judgment dismissing the complaint in an action for personal injuries under the Jones Act.

Mr. Dominick Blasi, with whom *Mr. Silas B. Axtell* was on the brief, for petitioner.

Mr. Alfred T. White, with whom *Messrs. William C. Chanler* and *Paxton Blair* were on the brief, for respondent.

MR. JUSTICE MURPHY delivered the opinion of the Court.

The right of jury trial in civil cases at common law is a basic and fundamental feature of our system of federal jurisprudence which is protected by the Seventh Amendment. A right so fundamental and sacred to the citizen,

whether guaranteed by the Constitution or provided by statute, should be jealously guarded by the courts. The present case is a suit by petitioner under the Jones Act¹ for personal injuries sustained when he fell because the wrench he was using to tighten a nut slipped under the torque applied to it. We are called upon to determine whether on the evidence adduced by petitioner, and in contravention of accepted juridical standards, petitioner was wrongfully deprived of his statutory right to jury trial by the action of the trial court in dismissing his complaint,² thereby refusing to submit the case to a jury which had been duly empanelled to try it. In holding that petitioner had failed to prove facts sufficient to warrant submitting the issue of respondent's negligence to the jury, the trial court relied on the so-called simple tool doctrine. The Circuit Court of Appeals affirmed. 119 F. 2d 800. The novel questions thus presented in the administration of the Jones Act prompted us to grant certiorari. 314 U. S. 595.

Petitioner's testimony³ is the complete answer to the question whether the case should have been taken from

¹ 41 Stat. 988, 1007, 46 U. S. C. § 688.

² The complaint set forth two causes of action—the first for personal injuries, and the second for maintenance and cure. Respondent moved to dismiss only the first cause of action. At the same time, in settlement of the second cause of action, respondent offered to consent to judgment for loss of wages from the time of the accident until petitioner returned to work. This offer was refused by petitioner's counsel and the second cause was thereupon dismissed. The Circuit Court of Appeals, *sua sponte*, directed that judgment be entered on the second cause of action for petitioner, in the amount admitted to be due from respondent. That judgment is not in issue here. Only the first cause of action, that for personal injuries, survives for our consideration.

³ Petitioner was the sole witness in his own behalf. The trial court did not allow an opinion witness, called for the purpose of establishing the best type of wrench for the work petitioner was doing at the time of the accident, to testify.